

INSTRUMENT SETTING OUT TERMS OF EASEMENTS AND RESTRICTIONS AS TO
USER INTENDED TO BE CREATED PURSUANT TO SECTION 88B OF THE
CONVEYANCING ACT 1919

DP806324

Sheet 1 of 2 Sheets

Plan: Plan of subdivision referred to in Council Clerk's
Certificate reference number 18/1990 and dated 14.9.90
duly endorsed on the said plan.

Lengths are in metres

Full Name and Address of
Proprietor of the Land:

1. Identity of restrictions
firstly referred to in
abovementioned plan.

Schedule of Lots etc. Affected

Lots burdened

Lots 29, 68, 69, 99, 100, 151, 152, 153, 154, 155 and 245 in
Deposited Plan 751834 and Lot 2
in Deposited Plan 587571

Lots or authorily benefited
Yass Shire Council

2. Identity of restrictions
secondly referred to in
abovementioned plan

Restrictions as to user

Schedule of Lots etc. Affected

Lots burdened

Lots 1 and 3 in Deposited Plan 806324

Lots or authorily benefited
Yass Shire Council

PART 2

1. Terms of restriction as to user firstly referred to in the abovementioned plan

In the event that the existing constructed means of access to the property is
legally denied at any time in the future then the owner for the time being of
the allotment so burdened by this restriction to user shall construct at his own
expense to the satisfaction of the council, a single lane all weather gravel
road with the road reserve bounded by portions 122, 124, 94, 40, 129, 134, 119,
118, 37, 36 and 35 Parish of Umburra County of Cowlsey to a reasonable standard
specified by Council, and subject to the approval of the New South Wales
Department of Lands.

2. Terms of restriction as to user secondly referred to in abovementioned plan

The lots burdened have been created to facilitate the exchange of agricultural
land under the provisions of the current Yass Local Environmental Plan. The
erection of dwellings on those lots is not permitted by that Local Environmental
Plan.

REGISTERED 23 NOV 1990

Alfred Jensen

Alfred Jensen

COMPRISED IN C.T.
V6 8626 FO 206

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USER INTENDED TO BE CREATED PURSUANT TO SECTION 88B OF THE
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Sheet 2 of 2 Sheets

Plan: Plan of subdivision referred to in Council Clerk's
certificate reference number 18/1990 and dated 14.9.90
duly endorsed on the said plan.

SIGNED in my presence by the said

ANTHONY HOWARD JENSEN AND ANNE
MARY JENSEN who are personally
known to me:

Signature of Witness

WENDY SPOLDING

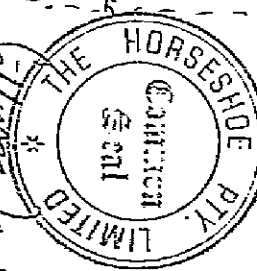
Name of Witness
200 CRAWFORD ST QUEANBEYAN

Signature of the Party

Address & Occupation of Witness

AS MORTGAGEE UNDER MORTGAGE NUMBER Y437102,
THE HORSESHOE PTY LTD HEREBY CONSENTS TO THE
WITHIN TERMS OF EASEMENTS AND RESTRICTIONS AS TO USER.

The common seal of
THE HORSESHOE PTY LTD
was hereunto affixed in
presence of its
Directors



Philippa
Secretary

As Mortgagee under Mortgage Number Y427036 dated
3-4-89 and Mortgage Number X664010 dated 11-4-88
Westpac Banking Corporation hereby consents to the
within Plan of Subdivision, terms of easements and
restrictions as to user.

Signed for and on behalf of
Westpac Banking Corporation by
PETER ERSON SMITH
its duly constituted Attorney
who is personally known to me

Peter Erson Smith

ADRIAN SHANE WHITE
COMMISSIONER FOR DECLARATIONS
District Commercial Manager
New South Wales Division

Witness states that at the time of executing this instrument no
notice of revocation has been received of the Power of Attorney
registered at the office of the Registrar General No. 274
Book 3 717 under the authority of which this instrument has
been executed.

Adrian Shane White

This negative is a photograph made as a permanent
record of a document in the custody of the
Registrar General this day, 26th November, 1990

